

PROMISING RETURN PRACTICES

PRE-RETURN CANADA

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Name of practice	Immigration Detention Monitoring Program	
Dates	2018 - present	
Target group	Immigrants (wide group)	
Geographic Scope	Country	Canada
	Regions	Americas
	Sub Region	North America
Actor	Canadian Red Cross	
Return Stages	Pre-Return	
Challenge addressed	Identification, Detention and Case Management Governance, Cooperation and Coordination Legal and Procedural	
Principles referred (implicit or explicit)	Human-rights–based approach Vulnerability & Child-centred Perspective	

SUMMARY

The Canadian Red Cross (CRC) monitors the administrative detention of foreign nationals detained under the Immigration and Refugee Protection Act. Throughout the year, the CRC organises planned visits, discretionary visits or unanticipated visits in response to notifications at the Canada Border Services Agency's (CBSA) immigration holding centres, provincial jails and municipal correctional facilities. These visits monitor the treatment of detainees (by staff or other detainees); conditions of detention; ability for detainees to contact and maintain contact with family members; and legal guarantees and procedural safeguards (including access to information and interpretation services).

Teams of trained volunteers and staff, with a background in public health, social sciences or law, conduct visits to detention facilities. The CRC's visits follow a standard procedure that includes: an initial discussion with the detaining authority; a tour of detainee accommodations and facilities (kitchen, sanitary installations, healthcare facilities, dormitories, etc.); private talks with detainees, individually or as a group (if requested by detainees); and a concluding discussion with the detaining authority to discuss observations and recommendations.

The CRC holds information sessions for staff and facility personnel in direct contact with immigration detainees and convenes meetings with external stakeholders such as UNHCR, legal aid agencies, and local NGOs.

BENEFITS/IMPACTS AND SHORTCOMINGS

Between 2017 and 2023, the Canadian Red Cross (CRC) visited 314 places of immigration detention and interviewed 1,467 detainees. Through its independent monitoring role, the CRC engaged detaining authorities to improve conditions of detention and promote compliance with national and international human rights standards.

Across all monitoring reports, the CRC consistently raised concerns about the co-mingling of immigration detainees with convicted criminal populations in provincial jails. Detaining foreign nationals for non-criminal purposes in facilities designed for criminal law enforcement was found to be incompatible with international human rights standards. The CRC therefore recommended that immigration detainees be

held in facilities other than provincial jails, or, where this is unavoidable, be strictly separated from the general prison population.

The Canada Border Services Agency (CBSA) accepted these recommendations and committed to reducing reliance on provincial jails by expanding alternatives to detention, including voice reporting, community-based case management, and electronic monitoring, as well as by increasing transfers to immigration holding centres. As a result, the number of immigration detainees held in provincial jails decreased from 2,043 in 2016–2017 to 931 in 2022–2023.

Despite this progress, the CBSA continues to use provincial jails for the detention of individuals assessed as higher risk and in regions where dedicated immigration holding centres are not available

KEY LESSONS

Independent detention monitoring can drive measurable policy change. Regular, structured monitoring by independent humanitarian actors can influence detention policy and practice by identifying systemic shortcomings and sustaining dialogue with authorities. In Canada, the CRC's monitoring programme contributed to CBSA's decision to expand alternatives to detention and reduce reliance on provincial jails.

The use of criminal detention facilities for administrative immigration detention raises significant protection concerns. Housing immigration detainees alongside convicted criminal populations risks blurring the non-punitive nature of administrative detention and may conflict with international human rights standards. In Canada, CRC monitoring visits consistently identified this issue, leading to recommendations to limit the use of provincial jails for immigration detention and, where unavoidable, to apply strict separation measures.

Policy commitments to reduce detention require structural capacity to be fully realised. Even where authorities accept monitoring recommendations, implementation may remain partial if suitable infrastructure and alternatives are unevenly available. In Canada, despite a significant reduction in numbers, the CBSA continues to rely on provincial jails for higher-risk cases and in regions without dedicated immigration holding centres

RECOMMENDATIONS

Independent detention monitoring must be accompanied by systematic follow-up and accountability mechanisms. Monitoring loses effectiveness if findings are not translated into measurable implementation and review processes. In Canada, this would mean establishing a formal mechanism to track, assess, and publicly report on how the Canada Border Services Agency implements recommendations issued by the Canadian Red Cross

REFERENCES

Canadian Red Cross. (2025a). A visit to a detention centre. Red Cross Canada. <https://www.redcross.ca/how-we-help/migrant-and-refugee-services/promoting-the-rights-of-immigration-detainees/a-visit-to-a-detention-centre>

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